



TERMINATION OF BUYER/TENANT REPRESENTATION AGREEMENT

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Notice: This termination is only effective when signed by both Client and Broker.

- A. Prior Agreement: On or about _____, Client and Broker entered into a Buyer/Tenant Representation Agreement (the agreement).
- B. Termination Date: The parties terminate the agreement at 11:59 p.m. on _____.
- C. Termination Fee: Upon execution of this termination, Client will pay Broker a fee of \$_____ for services rendered through the Termination Date. Client and Broker agree that this Termination Fee constitutes a fair and reasonable estimate of the damages Broker will incur due to early termination of the agreement, considering the time, labor, and services Broker has provided to Client up to the Termination Date. The Termination Fee is in addition to any fees payable to Broker under Paragraph D below.

D. Protection Period:

- (1) If on or before _____ Client or any Related Party agrees to purchase or lease a Property by oral or written agreement or option, Client will pay Broker at the time the Property is purchased or leased a fee equal to *(check all that apply)*:

- ☐ (a) _____ % of the sales price if Client or any Related Party purchases a Property.
- ☐ (b) _____ % of the gross rent to be paid over the term of the lease if Client or any Related Party leases a Property.
- ☐ (c) _____.

"Related party" means any assignee of Client; any spouse, domestic partner, or family member of Client; any officer, director, shareholder, partner, or member of Client; any affiliate of Client; any entity that directly or indirectly owns, is owned by, or is under common control with Client; and any trust for which Client is a trustee, settlor, grantor, or beneficiary.

- (2) The fees specified in Paragraph D(1) are payable only if Client or any Related Party agrees to purchase or lease: *(Check one box only)*

- ☐ (a) any Property in the Market Area.
- ☐ (b) any of the following properties: _____

_____.

- E. Release: Except as stated in this termination or in the provisions of the agreement that expressly survive termination, Client and Broker release each other from all other obligations under or related to the agreement.

Broker's (Company's) Printed Name _____

By: _____
Date _____

Client Date

Client Date